



Notification Waiver Determination

State Swim – In2Swim

Acquisition	Dolphin BidCo Pty Ltd (Dolphin), operating as State Swim, applied for a notification waiver in respect of its proposed acquisition of 100% of the share capital in In2Swim Pty Limited (In2Swim), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	27 July 2026

Parties to the Acquisition	Dolphin (together with its connected entities) operates a number of schools in South Australia, Victoria, Western Australia, and Singapore under the 'State Swim' brand. State Swim does not operate any swim schools in New South Wales. The target, In2Swim, operates one swimming school in Brookvale, New South Wales. State Swim and In2Swim both primarily supply swimming lessons to children between the ages of 6 months to 10 years (learn-to-swim lessons).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no horizontal overlap between State Swim and In2Swim in the supply of learn-to-swim lessons in New South Wales; and - there are alternative suppliers of learn-to-swim lessons in Greater Sydney and New South Wales. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act